

Gopali v. State of U.P. through Secretary and others

Allahabad High Court · Division Bench · 7 November 2012 · 2012 SCC OnLine All 3759 : (2013) 99 ALR 291 · C.M.W.P. No. 58528 of 2012 · **Writ petition dismissed on the ground of availability of the alternative remedy of a statutory appeal**

HEADNOTE

A writ against a final assessment order under Section 126 of the Electricity Act, 2003 will not be entertained where the controversy is basically factual and an appeal under Section 127 read with Clause 6.8 of the U.P. Electricity Supply Code, 2005 is available. On a checking (24.3.2011) a provisional assessment (4.7.2011) and demand notice were issued; after an earlier writ directed disposal of the consumer's objection, the Executive Engineer dismissed it (26.9.2012). The Court accepted the licensee's preliminary objection and, noting that s.126 provides for provisional assessment, objections and a final order after hearing, and s.127 r/w Clause 6.8 provides the appeal, dismissed the writ on the ground of alternative remedy, the factual controversy being fit for the appellate forum. (Closely parallels SCJ-224, Moolchand Saini, another Mehrotra-Bench dismissal on the same footing.)

HOLDING-UNITS

INTERPLAY · EA2003::127

Writ against a final s.126 assessment declined where the s.127 appeal is available and the dispute is factual

QUESTION

Should a writ against a final Section 126 assessment be entertained where the controversy is factual and an appeal under Section 127 r/w Clause 6.8 is available?

HOLDING

No. Section 126 provides for provisional assessment, objections and a final order after hearing; Section 127(1) gives a right of appeal against the final order, and Clause 6.8 likewise provides for an appeal. As the controversy was basically factual and better decided in appeal, the Court accepted the preliminary objection and dismissed the writ on the ground of the available alternative remedy. ¶ 6-15

LIMITING FACTS

Checking 24.3.2011; provisional assessment 4.7.2011; objection dismissed by EE on 26.9.2012 after an earlier writ directed its disposal; challenge basically factual.

PRINCIPLE TAGS

relegate-to-statutory-remedy A factual challenge to a final s.126 assessment is not entertained in writ jurisdiction where the s.127 appeal (r/w Clause 6.8) is available. ¶ 6-15

alternative-remedy-relegation The statutory appeal is the appropriate forum for a fact-heavy assessment dispute; existence of the remedy warrants declining the writ. ¶ 13-14

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE MERITS OF THE CHECKING AND THE FINAL ASSESSMENT

Left to the s.127 appellate authority; the controversy was found to be basically factual. ¶ 13-14